TALLIS DEVELOPMENT GROUP, LLC
410 Cool Springs Boulevard, Suite 300, Franklin, Tennessee 37067

September 26, 2025

Mr. Gregory Tate, President
Brightwater Builders, Inc.

Re: Harpeth Ridge Medical Office Building - Assessment of Liquidated Damages

Dear Mr. Tate:

Substantial Completion was required by June 30, 2025 and was achieved on September 12, 2025, a delay of seventy-four (74) calendar days. No extension of the Contract Time was granted.

Under Section 3.4 of the Agreement, Tallis assesses liquidated damages of $2,500.00 per day for 74 days, a total of $185,000.00, which Tallis will withhold from retainage presently held in the amount of $742,500.00.

Tallis further reserves its claim for the cost of its consultants' time associated with the Level 3 ductwork.

Sincerely,

Dana Whitcomb
Vice President, Development